

Court No. - 3

Case :- WRIT - C No. - 34937 of 2021

Petitioner :- Ramesh Chandra

Respondent :- Uttar Pradesh Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Jai Prakash Prasad

Counsel for Respondent :- C.S.C.,Alok Mishra,Krishna Agarawal

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard Shri Jai Prakash Prasad, learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Shri Alok Mishra, learned counsel for the respondent nos. 1, 2 and 3.

2. This writ petition has been filed praying for following relief:

"i) a writ, order or direction in the nature of Certiorari quashing the impugned order dated 28.09.2021 passed by the respondent no. 3 (Annexure no. 8 to the writ petition).

ii) a writ, order or direction in the nature of Mandamus directing the respondent no. 3 to decide the matter of the petitioner pending before him according to law till then the recovery may be stayed."

3. Briefly stated facts of the present case are that earlier the respondent no. 3 had passed an assessment order on the ground of theft of electricity by the petitioner without affording any opportunity of hearing. The said order was quashed by this Court by order dated 5.8.2021 in Writ-C No. 14630 of 2021 (Ramesh Chandra Vs. Uttar Pradesh Power Corporation Ltd. and 3 others) and the writ petition was disposed of with a direction to the respondent to afford an opportunity of hearing to the petitioner and pass a reasoned and speaking order. The petitioner appeared before the respondent no. 3 and again submitted a copy of his objection dated 5.10.2020 and an objection dated 12.8.2021. It appears that the respondent no. 3 constituted a three member committee on 28.8.2021, which conducted a surprise inspection on 14.9.2021 and found no illegality or theft of electricity. The aforesaid committee submitted its report dated 20.9.2021 before the respondent no. 3. In the aforesaid report, it was also mentioned that vide letter no. 1815 dated 13.9.2021, the Junior Engineer- Shri Narendra Sharma was directed to produce evidences of checking on 19.8.2020 but he did not produce any evidence. The committee, therefore, concluded that since there is L.T. line and transformer

near the premises in question, therefore, possibility of electricity theft cannot be ruled out. Based on the aforesaid report dated 20.9.2021, the respondent no. 3 has passed the impugned order assuming electricity theft by the petitioner on the ground that L.T. line and transformer are near the premises in question and therefore, theft of electricity cannot be ruled out. Aggrieved with this order, the petitioner has filed the present writ petition.

4. Perusal of the impugned order shows that it is based on surmises and conjecture. Even as per the three member committee report dated 20.9.2021 no evidence of electricity theft was found. The respondents do not have any evidence in their possession for theft of electricity as appearing from the three member committee report dated 20.9.2021. That apart, the mandatory provisions of Para 6.8(a)(iv) and (v) of the U.P. Electricity Supply Code, 2005, have not been followed at all. Since the impugned order is arbitrary and hits Article 14 of the Constitution of India and, moreover, effective opportunity of hearing has not been provided and the impugned order has been passed without confronting the petitioner with any adverse material in possession of the respondents, therefore, the impugned order cannot be sustained and is hereby quashed. Consequently, the recovery proceedings also stands quashed.

5. The writ petition is **allowed**. The report of three member committee dated 20.9.2021 as produced by the learned counsel for the respondent nos. 1, 2 and 3 is kept on record.

Order Date :- 12.5.2022

A. V. Singh